

File No.: EXP202311081

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On June 21, 2023, a complaint was filed with entry registration number (...) before the Spanish Agency for Data Protection against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. with NIF A48265169 (hereinafter, BBVA or the complained party). The reasons for the complaint are as follows: The complainant states that, to change the authorized persons on the bank account of the homeowners' association of which they are the administrator and authorized person, BBVA requests a copy of the minutes of the Homeowners' Association, thus violating what is established in Report 0303/2009, issued by the Legal Department of this Agency.

This report clarifies that the request for the minutes of the meeting contains personal data of the other property owners of the estate, including third parties, which are unnecessary for the specific purpose pursued. It asserts that this purpose in this case consists of communicating to BBVA the new authorized signatories for the bank account; and that to achieve this objective, the certification communicating the newly elected signatories is adequate and sufficient.

The complainant adds that they have provided the complained party with certificates related to the minutes, but that the account remains blocked and the complained party reiterates that a copy of the current minutes must be provided.

Along with the complaint, a copy of the response from the complained party addressed to the complainant, dated June 8, 2023, is attached, in which it is indicated, among other aspects, the following: "We confirm that from this Service we have contacted both the office (...) of ***ADDRESS.1 and the responsible department from where we are informed that to validate the current representation positions of the Homeowners' Association ***COMMUNITY.1, it is necessary to provide the current minutes."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party/ALIAS, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 11/08/2023 as recorded in the acknowledgment of receipt in the file.

On 12/09/2023, a response was received by this Agency indicating that BBVA is seeking an appropriate solution to the issue raised by its client.

THIRD: On 21/09/2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: On 22/09/2023, BBVA wrote to the complainant stating that its legal advisory accepted the certification from the Property Administrator to change the ownership of the bank account, instead of the minutes initially requested, as the signatures of the new representatives of the Homeowners' Association had already been registered. This document was submitted to this AEPD on 25/09/2023.

FIFTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General

Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

- 1.- The complained party requested, by means of a letter dated 08/06/2023, that the complainant provide the current minutes of the Homeowners' Association ***COMMUNITY.1 to validate the current positions of that Community.
- 2.- That, after the forwarding of the complaint and the day after its admission for processing, the complained party, on 22/09/2023, communicated to the complainant that from the office (...) of ***ADDRESS.1, the new documentation submitted had already been verified, and the signatures of the new representatives of the Community had already been registered, once they had visited the office.
- 3.- That this communication was submitted by the complained party to this Agency on 25/09/2023, although in the response letter it was incorrectly indicated that this documentation corresponded to (...) and not to (...) which is the subject of the present investigative proceedings and to which they were addressed.

LEGAL GROUNDS

I

Competence

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According to the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Data Minimization

Letter c) of Article 5.1 of the GDPR advocates:

"1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

In REPORT 303/2009, dated 02/02/2010, from the Legal Department of the Spanish Agency for Data Protection, regarding a query about the legality of the request for the minutes book of the homeowners' association made by certain financial entities to the administrators of the same, for the purpose of formalizing the opening of a current account or for the annual change of signatures of the new officers of the community, it is indicated that:

"(...) for the intended purpose, it will not be necessary to communicate personal data relating to the owners of the Community in question, communication or transfer that would occur if the financial entity were provided with the Minutes of the Meeting in which the renewal and appointment of new governing bodies of the Community took place or the intended Minutes book, which would require the consent of the affected owners, as an unconsented transfer could not be justified under any of the referred cases of Article 11.2, not even under 11.2. c), since it is the Community of owners that is the party in the legal relationship established with the financial entity, and not each of the owners that compose it.

In the present case, the purpose for which the financial entity requires the personal data of the person holding the legal representation of the homeowners' association and of the person authorized to sign to intervene in the different movements of the bank account of said Community is clear. However, such

data can be communicated to them through the corresponding certification issued by the secretary-administrator of said Community.”

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Community or other legal power of attorney document, for the accuracy and truthfulness of which the governing bodies of the Community shall be accountable to the financial entity, without the financial entity being responsible for overseeing the legality of the operation of the Community of property owners, without prejudice to the possibility of holding it liable in cases where appropriate.

In conclusion, it can be understood that the request for the Minutes Book, which contains personal data of the other property owners of the estate, including third parties, for the specific purpose pursued, is unnecessary since the aforementioned certification can fulfill that purpose with similar effectiveness and is suitable, and does not pass the strict proportionality test, in the sense that it is unbalanced, as it results in more disadvantages for the general interest or regarding other conflicting rights, such as the fundamental right to data protection of the individuals mentioned in the minutes of the Board, than benefits.

Proportionality, which, despite being an indeterminate legal concept, the Judgment of the Constitutional Court 207/1996 determines that it is “a common and constant requirement for the constitutionality of any restrictive measure of fundamental rights.”

The party being claimed agrees to the claims in the expressed sense; that is, that the provision of the minutes of the meeting is excessive for its purpose, and that the new officers of the Community of Property Owners can be communicated through the corresponding certification issued by the secretary-administrator of said Community or another legal power of attorney document, for the accuracy and truthfulness of which the governing bodies of the Community would be responsible before BBVA.

For its part, regarding the admission of claims, article 65.4 in fine of the LOPDGDD establishes the following (the underlining is ours):

“Article 65. Admission of claims for processing.

4. Before resolving on the admission of the claim for processing, the Spanish Agency for Data Protection may refer it to the data protection officer that may have been designated by the data controller or processor, to the supervisory body established for the application of codes of conduct, or to the body that assumes the functions of extrajudicial conflict resolution for the purposes provided in articles 37 and 38.2 of this organic law.

The Spanish Agency for Data Protection may also refer the claim to the data controller or processor when a data protection officer has not been designated nor is it adhered to extrajudicial conflict resolution mechanisms, in which case the data controller or processor must respond to the claim within one month.

If as a result of such referral actions, the data controller or processor demonstrates having adopted measures for compliance with the applicable regulations, the Spanish Agency for Data Protection may inadmit the claim for processing.”

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In this case, it is noted that BBVA, as the data controller of the data subject to the complaint, adopted the measures that evidenced compliance with the applicable regulations prior to the admission of the complaint for processing, without prejudice to the fact that the receipt of the measure reached the complainant one day later. Subsequently, BBVA sent its response to the AEPD evidencing the adoption of such measures four days later, but referring to a different entry number than the reference of the complaint, which is why it could not be taken into account at that moment.

Therefore, this authority considers it appropriate to archive the proceedings. All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

III

Conclusion

Therefore, based on what is indicated in the previous paragraphs, although evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, it has been established that the data controller has adopted measures to correct the non-compliance as a result of the AEPD's referral activities and addressed the complaint during the transfer procedure.

Thus, in accordance with the aforementioned, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to BANCO BILBAO VIZCAYA ARGENTARIA, S.A. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the

Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Lorenzo Cotino Hueso

C/ Jorge Juan, 6

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President of the Data Protection Agency

C/ Jorge Juan, 6

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